

RESOLUTION NO. 2022-122-3833

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF MIAMI GARDENS, FLORIDA, RATIFYING AND APPROVING THE COLLECTIVE BARGAINING AGREEMENT BETWEEN THE TEAMSTERS LOCAL 769 AND THE CITY OF MIAMI GARDENS, FLORIDA FOR A PERIOD FROM OCTOBER 1, 2022 THROUGH SEPTEMBER 30, 2025; ATTACHED HERETO AS EXHIBIT "A"; PROVIDING FOR THE ADOPTION OF REPRESENTATIONS; PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, in 2019, pursuant to PERC Certification No. 1949, a bargaining unit of supervisors was recognized and Teamsters Local 769 ("Union"), affiliated with the International Brotherhood of Teamsters, was acknowledged as the labor representative for the bargaining unit, and

WHEREAS, the bargaining unit is comprised of City employees in the classifications of Athletic Supervisor, Irrigation Supervisor, Janitorial Supervisor, Landscape Supervisor, Park Ranger Supervisor, Public Service Supervisor and Recreation Supervisor, and

WHEREAS, the first Collective Bargaining Agreement, was entered into by the City of Miami Gardens and the Union covered three years commencing on October 1, 2019 and ending on September 30, 2022, and

WHEREAS, on August 10, 2022, the Union and the City of Miami Gardens tentatively agreed to the terms of a proposed Collective Bargaining Agreement, hereto attached as exhibit "A", which was subsequently ratified by the Bargaining Unit by vote of its membership on August 22, 2022, and

WHEREAS, the City Manager recommends that the City Council ratify and approve the collective bargaining agreement between the Teamsters Local 769 and the City of Miami Gardens, Florida for a period from October 1, 2022 through September 30, 2025,

NOW, THEREFORE, BE IT RESOLVED BY THE CITY COUNCIL OF THE CITY OF MIAMI GARDENS, FLORIDA AS FOLLOWS:

Section 1: ADOPTION OF REPRESENTATIONS: The foregoing Whereas paragraphs are hereby ratified and confirmed as being true, and the same are hereby made a specific part of this Resolution.

Section 2: APPROVAL: The City Council of the City of Miami Gardens hereby ratifies and approves the Collective Bargaining Agreement between the Teamsters Local 769 and the City of Miami Gardens, Florida for a period from October 1, 2022 through September 30, 2025.

Section 3: EFFECTIVE DATE: This Resolution shall take effect immediately upon its final passage.

PASSED AND ADOPTED BY THE CITY COUNCIL OF THE CITY OF MIAMI GARDENS AT ITS REGULAR MEETING HELD ON SEPTEMBER 14, 2022.

RODNEY HARRIS, MAYOR

ATTEST:

MARIO BATAILLE, CMC, CITY CLERK

PREPARED BY: SONJA KNIGHTON DICKENS, CITY ATTORNEY

SPONSORED BY: CAMERON BENSON, CITY MANAGER

Moved by: Vice Mayor Leon
Seconded by: Councilwoman Campbell

VOTE: 7-0

<i>Mayor Harris</i>	Yes
<i>Vice Mayor Leon</i>	Yes
<i>Councilwoman Campbell</i>	Yes
<i>Councilwoman Ighodaro</i>	Yes
<i>Councilwoman Julien</i>	Yes
<i>Councilman Stephens, III</i>	Yes
<i>Councilwoman Wilson</i>	Yes

COLLECTIVE BARGAINING AGREEMENT

-Between-

THE CITY OF MIAMI GARDENS

-And-

**TEAMSTERS LOCAL 769,
AFFILIATED WITH THE INTERNATIONAL
BROTHERHOOD OF TEAMSTERS**

Effective October 1, 2022 Through September 30, 2025

TABLE OF CONTENTS

	<u>Page</u>
TABLE OF CONTENTS.....	i
Page.....	i
ARTICLE 1 PREAMBLE	1
ARTICLE 2 RECOGNITION	2
ARTICLE 3 DUES DEDUCTIONS.....	3
ARTICLE 4 MANAGEMENT RIGHTS	5
ARTICLE 5 UNION BUSINESS.....	6
ARTICLE 6 GRIEVANCE PROCEDURE.....	8
ARTICLE 7 ARBITRATION.....	10
ARTICLE 8 BULLETIN BOARDS.....	11
ARTICLE 9 UNIFORMS	12
ARTICLE 10 SENIORITY.....	13
ARTICLE 11 PERSONNEL FILES.....	14
ARTICLE 12 HOLIDAYS	15
ARTICLE 13 BEREAVEMENT LEAVE.....	18
ARTICLE 14 EVALUATION PERIOD	20
ARTICLE 15 PROMOTIONS AND DEMOTIONS	21
ARTICLE 16 TRANSFERS.....	23
ARTICLE 17 HOURS OF WORK, BREAKS, TARDINESS, AND ABSENCES.....	25
ARTICLE 18 OVERTIME AND CALL-OUT PAY	28
ARTICLE 19 PERSONAL TIME OFF	29
ARTICLE 20 INSURANCE.....	32
ARTICLE 21 WAGES	35

ARTICLE 22 EDUCATION INCENTIVE	36
ARTICLE 23 LAYOFF AND RECALL	37
ARTICLE 24 DISCIPLINARY ACTION PROCESS	38
ARTICLE 25 SEVERABILITY CLAUSE	43
APPENDIX A.....	44
APPENDIX B	45
APPENDIX C	46

ARTICLE 1

PREAMBLE

This Agreement is entered into this 1st day of October, 2022, by and between the City of Miami Gardens, hereinafter referred to as “the City” or “Employer” and the Teamsters Local No. 769, affiliated with the International Brotherhood of Teamsters, hereinafter referred to as “the Union.”

WHEREAS, this Agreement shall be effective from October 1, 2022 through September 30, 2025; and

WHEREAS, this Agreement reduces to writing the understandings of the City and the Union to comply with the requirements contained in Chapter 447, Florida Statutes, as amended; and

WHEREAS, this Agreement is entered into to promote a harmonious relationship between the City and the Union and to encourage more effective employee service in the public interest; and

WHEREAS, it is understood that the City is engaged in furnishing essential public services which vitally affect the health, safety, comfort and general well-being of the public and the Union recognizes the need to provide continuous and reliable service to the public; and

NOW THEREFORE, in consideration of the mutual covenants and agreements herein contained, the parties hereto agree as follows:

ARTICLE 2

RECOGNITION

2.1 The City agrees to hereby recognize the Union as the sole and exclusive bargaining agent for the purposes of collective bargaining regarding wages, hours and other conditions of employment for those employees included within the certified bargaining unit described in PERC Certification No. 1949, hereinafter referred to as “the bargaining unit,” as follows:

Included: All City employees in the classifications of Athletic Supervisor, Irrigation Supervisor, Janitorial Supervisor, Landscape Supervisor, Park Ranger Supervisor, Public Service Supervisor and Recreation Supervisor [The City and Union agree to eliminate the Recreation Supervisor position and include Park Manager as part of the Bargaining Unit.]

Excluded: All other City employees.

2.2 It is agreed that if and when new position classifications are created by action of the City, the question of inclusion or exclusion within the bargaining unit shall be settled in accordance with State Law.

ARTICLE 3

DUES DEDUCTIONS

3.1 Union members may authorize payroll deductions for the purpose of paying Union dues and initiation fees. Any member of the Union who has submitted a properly executed dues deduction form to the City Manager or designee may have membership dues in the Union deducted from the member's wages. No authorization shall be allowed for payment of initiation fees, assessments, or fines. Payroll deductions shall be revocable at the member's request upon thirty (30)_days' written notice to the City and the Union. A written request for revocation received by the City from a member which is forwarded to the Union shall constitute written notice of such revocation to the Union.

3.2 Dues deducted shall be transmitted to the Union for the first two (2) pay periods of each month within ten (10) days from the end of the month. The Union will not be required to reimburse the City for administrative costs of payroll deductions withheld by the City.

3.3 It shall be the responsibility of the Union to notify the City Manager or his designee, in writing of any change in the amount of dues to be deducted at least thirty (30) days in advance of such change.

3.4 The Union shall indemnify, defend and hold the City harmless against any and all claims, suits, orders, and judgments brought and issued against the City as a result of any action taken or not taken by the City under the provisions of this Article.

3.5 The employee's earnings must be regularly sufficient, after other legal and required deductions are made, to cover the amount of appropriate Union dues. When a member is in a non-pay status for an entire pay period, dues deduction from future earnings may not be made to cover that pay period. In the case of an employee who is in a non-pay status during only part of

the pay period, if available wages are not sufficient to cover the full dues deduction, no deduction shall be made. All legally required deductions have priority over Union dues.

3.6 Any arbitration award providing retroactive pay to a Union member will have union dues deducted by the City.

ARTICLE 4

MANAGEMENT RIGHTS

4.1 The City reserves and retains, solely and exclusively to itself, all of the normal, inherent, statutory, and common law rights to manage the City and its employees, including the members of the bargaining unit, whether exercised or not, except and only to the extent that such rights are expressly abridged by a specific provision of this Agreement. The City's past or future failure to exercise any function or right hereby reserved to it, or its past or future exercising of any function or right in any particular way, shall not be deemed a waiver of its future right to exercise such function or right, nor preclude the City from exercising the same in some other way not in conflict with the express provisions of this Agreement.

ARTICLE 5

UNION BUSINESS

5.1 Neither party in negotiations shall have any control over the selections of the negotiating or bargaining representative of the other party. The bargaining committee of the Union shall consist of three (3) City employee members representing the bargaining unit, of which at least one (1) employee shall be selected from the Parks & Recreation Department and at least one (1) employee shall be selected from the Public Works Department, and two (2) representatives of the Union. Bargaining Unit members serving as representatives during collective bargaining negotiations with the City who are scheduled to work on the date a collective bargaining session is held will receive compensation at their regular rate of pay for the time spent participating in such bargaining session and other time approved in advance by the City when the time is spent preparing for a collective bargaining session. No more than three (3) employee Bargaining Unit representatives will receive pay for participating in and/or preparing for a collective bargaining session. The Union will furnish the City with a written list of the Union bargaining committee, prior to the first bargaining session, and will substitute changes thereto in writing to the City.

5.2 Bargaining Unit members shall be allowed to communicate Union business while off-duty and during their own time, including during lunch and other City-approved breaks.

5.3 The Union agrees that there shall be no solicitation of City employees for membership in the Union, signing up of members, collection of initiation fees, dues or assessments, meetings, distribution of Union or affiliated Union literature or any other business activity of the Union on City time and during the working hours of City employees, except during unrestricted time provided by the City to Bargaining Unit members on duty such as lunch and other City approved breaks.

5.4 One on-duty representative may attend any meeting involving the City and a Bargaining Unit member, without the loss of pay, when the member's presence is requested by the Bargaining Unit member who believes the meeting may reasonably lead to discipline as set forth by the applicable law. One on-duty representative may attend any grievance and/or arbitration arising under the interpretation or application of this contract, without the loss of pay.

5.5 The Union agrees that it will carry out its business in such a manner as not to disrupt normal departmental activities, work production, or services.

5.6 For each calendar year, one employee Union representative may attend one (1) official Union convention or meeting on a scheduled workday with pay, and up to two (2) additional days, without pay, when the employee gives at least fifteen (15) day notice to the Human Resources Director and the requested time-off is approved by the City. The City's approval shall not be unreasonably withheld.

5.7 Off-duty time spent on negotiations or grievances shall not be deemed "hours worked" as defined by FLSA, nor shall such time be accrued toward overtime in any employees work day or workweek.

5.8 The City and the Union agree that there will be no collective bargaining negotiations attempted or entered into between any persons other than the City Manager and/or designee and designated representatives of the Union. Any attempt to circumvent the proper bargaining process shall be deemed grounds for either party to file an unfair labor practice and shall result in appropriate charges being filed against the offending party.

ARTICLE 6

GRIEVANCE PROCEDURE

6.1 In a mutual effort to promote harmonious working relations between the parties of this Agreement, it is agreed to and understood by both parties that there shall be a procedure for the resolution of grievances or misunderstandings between the parties arising from the application and interpretation of this Agreement. A “Grievance” is defined as a dispute involving the interpretation or application of this Agreement. The definition of grievance shall be strictly construed and no other matter shall be subject to resolution under this Article without the written agreement of the City and the Union.

6.2 The Union accepts its fair duty of fair representation but retains its right to preclude the processing of non-meritorious grievances through the steps of this grievance procedure, inclusive of arbitration.

6.3 It is agreed and understood by both parties that this grievance procedure is the sole and exclusive avenue of redress available to any bargaining unit member.

6.4 Grievances will be processed in the following manner and strictly in accordance with the following stated time limits. To simplify the grievance procedure, the number of “working days” in presenting a Grievance and receiving a reply from different levels or steps shall be based on the scheduled work week, excluding the holidays listed in this Agreement.

STEP1: Within ten (10) working days after the act or occurrence which gives rise to the Grievance, the grievant and the Union shall file a written grievance with the Human Resources Director. The written grievance must include 1) a summary of the facts on which the grievance is based, 2) the Article(s) the grievant claims has been violated, 3) a statement of the remedy requested and 4) the grievant’s signature. The written grievance shall be filed with the grievant’s immediate supervisor.

Within ten (10) working days after receiving a written grievance containing the requisite information, the City Manager or designees(s) should meet with the grievant to discuss the Grievance. The employee may request to be accompanied by the on-site Union Steward or Union Business Representative during this meeting.

STEP 2: In the event the grievant is not satisfied following Step 1, the grievant and the Union must notify the Human Resources Director in writing within three (3) working days after the meeting held under Step 1 that a written response is requested. If the City fails to meet with the employee within the time limits set forth in Step 1, the grievant and the Union must notify the Human Resources Director in writing that a written response is requested with within three (3) working days after the deadline to meet has passed.

Within ten (10) working days after the Human Resources Director receives the grievant and Union's written request for a written response, the City Manager or designee should provide the grievant and the Union with a written response.

STEP 3: In the event the grievant is not satisfied with the written response in Step 2, the grievant and the Union may make a written demand for arbitration pursuant to Article 7 of this Agreement to the Human Resources Director within ten (10) working days of receiving the written response under Step 2. If the City Manager or designee fails to provide a timely written response under Step 2, the written demand for arbitration must be made ten (10) working days after the response was due.

6.5 An employee covered by this agreement or the Union may withdraw a Grievance at any point by submitting, in writing, a statement to that effect, or by permitting the time requirements to lapse. Any Grievance not advanced by the employee and the Union to the next higher step by the time limits provided shall be deemed permanently withdrawn and settled. These time limitations may be extended only by written agreement of the parties.

ARTICLE 7

ARBITRATION

7.1 Only Grievances involving the application and interpretation of this Agreement and which have been processed in strict compliance with all Steps of the grievance procedure set forth in Article 6, including the time and notice provisions contained therein, are subject to arbitration.

7.2 The arbitrator shall be appointed by mutual consideration of the parties. Either party may petition the Federal Mediation and Conciliation Service and request a list of seven (7) arbitrators and from that list the parties shall alternatively strike and select a single arbitrator to preside as a neutral arbitrator at the hearing involving the grievance.

7.3 The decision of said arbitrator shall be final and binding upon both parties. The arbitrator shall not be empowered to alter, amend, add to, or eliminate any provisions of this Agreement.

7.4 The parties shall equally bear the expenses of the arbitrator. Each party shall bear the expense of its own witnesses, representatives, attorneys, and all other individual expenses.

ARTICLE 8

BULLETIN BOARDS

8.1 The City shall provide the Union with reasonable space and access to existing bulletin boards in those areas where members of the Union are employed.

8.2 The Union agrees that it will limit its use of the bulletin boards to the posting of the following:

- (a) Notices of Union meetings;
- (b) Notice of Union elections;
- (c) Reports of Union Committees;
- (d) Recreational and social affairs of the Union;
- (e) Union Newsletters; and

(f) Other documents of concern to the bargaining unit and/or members, with prior review and approval of the Human Resources Director or designee. Such approval shall not be unreasonably withheld by the City.

8.3 Any notice or item placed on the bulletin boards shall bear on its face the legible designation of the person responsible for placing such item or notice on the bulletin board(s). A copy of each notice to be posted shall be sent to the Human Resources Director.

8.4 The City shall have the right to unilaterally remove any item from the bulletin board(s) which does not strictly comply with the provisions of this Article.

ARTICLE 9

UNIFORMS

9.1 The City, at its sole discretion, will issue uniforms to certain employees as needed. When uniforms are issued by the City, they will be at no cost to the employees but may be subject to withholding taxes based on regulations and guidelines of the Internal Revenue Service. When determining whether an employee will be issued uniforms, the City will consider whether uniforms should be worn for identification purposes. The City will also consider the nature of the work performed.

9.2 Employees are expected to utilize proper care for all uniforms issued. Employees may not wear City issued clothing/uniforms with City emblems or seals during off-duty hours unless specifically to/from work, at City-sponsored events, or authorized by supervisory personnel.

9.3 The City shall make disposable jumpsuits available for bargaining unit members who are exposed to hazardous waste, hazardous chemicals, or other hazardous substances. These disposable jumpsuits will be available at no cost to such bargaining unit members.

ARTICLE 10

SENIORITY

10.1 Seniority shall be defined as continuous length of service with the City of Miami Gardens as follows:

- (1) Seniority shall consist of continuous accumulated paid service with the City.
- (2) Seniority shall be computed from the date of hire.
- (3) Seniority shall accumulate during absences because of illness, injury, vacation, military leave or other authorized leave.

10.2 Employees shall lose their seniority as the result of the following:

- (1) Termination
- (2) Retirement
- (3) Resignation
- (4) Layoff exceeding one (1) year

10.3 An employee will be considered a new hire with a new starting date if the employee is terminated or resigns at any time during employment and is subsequently re-employed. An employee will also be considered a new hire with a new starting date if the employee returns to work after being laid off for more than twelve (12) months.

ARTICLE 11

PERSONNEL FILES

11.1 When an employee requests to review another employee's personnel file or a public records request is made for an employee's personnel file, the employee whose file has been reviewed and/or requested will be notified of the request by the Human Resources Department. Employees will not be notified of requests that involve investigations by any law enforcement agency, state attorney office, city-authorized personnel, or other entity which would compromise an investigation.

11.2 An employee may request to review the employee's personnel file at any time mutually agreeable for the employee and the Human Resources Department staff. Neither the file nor its contents may be removed from the Human Resources Department office. An employee may request copies of documents from the employee's personnel file. Copies shall be furnished when appropriate in accordance with Florida statutory law at the City's established rate for copies of documents.

11.3 An employee may submit a rebuttal to any document in the employee's personnel file together with the original disputed document. A copy of the rebuttal will also be sent to the department in which the employee works.

ARTICLE 12

HOLIDAYS

12.1 All regular full-time employees shall observe the following holidays on the days indicated:

New Year's Day	January 1
Martin Luther King Jr.'s Birthday	3 rd Monday in January
President's Day	3 rd Monday in February
Memorial Day	Last Monday in May
Juneteenth	June 19
Independence Day	July 4
Labor Day	First Monday in September
Columbus Day	2 nd Monday in October
Veteran's Day	November 11
Thanksgiving Day	4 th Thursday in November
Day after Thanksgiving	Day after 4 th Thursday in November
Christmas Day**	December 25

12.2 ** When Christmas falls on a Sunday, Monday, or Tuesday, the holiday will be granted as Monday and Tuesday. When Christmas falls on a Thursday, Friday, or Saturday, the holiday will be granted as the Thursday and Friday. When Christmas falls on a Wednesday, the holiday will be granted as Monday, Tuesday and Wednesday.

12.3 Employee's whose regular work schedules are from Monday through Friday, will observe a Saturday holiday on the preceding Friday. A holiday that falls on a Sunday will be observed the following Monday.

12.4 All bargaining unit employees will receive holiday pay for the date(s) the holiday is observed. Holiday pay for full-time employees on a forty (40)-hour, four (4)-day workweek schedule shall constitute a total of ten (10) hours at their regular rate of pay. Holiday pay for full-time employees on a forty (40)-hour, five (5)-day, workweek schedule shall constitute a total of eight (8) hours at their regular rate of pay. Holiday pay will be received whether or not the employee works on the day(s) the holiday is observed. However, employees who work on the day(s) the holiday is observed may choose to “bank” the holiday(s) at straight time, in lieu of receiving holiday pay, and take this time off at the discretion of the Department Director at a later date.

12.5 Saved holiday time shall be used and accrued in increments of no less than a quarter hour. All saved holiday time must be used in the fiscal year earned. For purposes of this policy, the fiscal year ends the last day of the last regular pay period in any particular fiscal year. If an employee is unable to take the employee’s saved holiday time off, such time will be lost and no compensation will be paid.

12.6 An employee must be in a paid status the scheduled day before and the scheduled day after a holiday to be paid for that holiday.

12.7 All bargaining unit employees who work on the observed holiday will be compensated at one-and one-half (1 ½) times the regular rate of pay for all hours worked that day, in addition to pay for the holiday.

12.8 Only actual hours worked shall be considered time worked for purposes of the Fair Labor Standards Act, including its overtime payment provisions.

12.9 Holiday leave payment that is not paid within eleven (11) months of the month in which the work was performed will not be reported as compensation under the FRS Pension or FRS Investment Plan.

12.10 One (1) Floating Holiday may be taken each fiscal year. The Floating Holiday for full-time bargaining unit members in the Public Works Department will consist of ten (10) hours as requested by the member, subject to approval of the Department Director or immediate supervisor. The Floating Holiday for full-time bargaining unit members in the Parks and Recreation Department, whether or not supervised by another Department, will consist of eight (8) hours as requested by the member subject to approval of the Department Director or immediate supervisor.

12.11 Regular full-time employees are eligible for this Floating Holiday immediately upon employment. If an employee is rehired within the same fiscal year, they will not be eligible for an additional Floating Holiday.

12.12 The Floating Holiday shall be taken in the fiscal year earned and any Floating Holiday not taken by September 30th will be lost.

12.13 Upon termination of employment, an employee shall not be paid for the Floating Holiday if not used during that fiscal year.

ARTICLE 13

BEREAVEMENT LEAVE

13.1 Bargain Unit members are entitled to bereavement leave when the member provides adequate notice of a death in member's Immediate Family as defined in this Article. A Bargaining Unit member provides adequate notice when the member notifies the immediate supervisor of such death as soon as reasonably possible.

13.2 Immediate Family shall be defined as employee's Spouse, Mother, Father, Brother, Sister, Children, Foster Child, Guardian, Grandchildren, Step-children, Step-parents, Grandmother, Grandfather, Father-in-law, Mother-in-law, Daughter-in-law, Son-in-law, Brother-in-law Sister-in-law and person determined to be considered parents (i.e. in the place of a parent) or other relative domiciled in the employee's household and Domestic Partner.

The following criteria must be met in order for someone to qualify as a Domestic Partner of a Bargaining Unit member:

- (a) Each person must be at least 18 years old and competent to contract;
- (b) Neither person may be married under Florida law, a partner to another domestic partnership, or a member of another civil union;
- (c) Neither person may be related by blood;
- (d) Both persons must consider themselves part of the immediate family of the other partner and be jointly responsible for maintaining and supporting the domestic partnership;
- (e) Both persons must have resided in the same primary address for at least 1 year; and
- (f) Both persons must provide a sworn affidavit attesting that section (a) – (e) have been satisfied.

13.3 After providing adequate notice concerning the death of an Immediate Family member, Bargaining Unit members are entitled to three (3) working days of bereavement leave, with pay, for in-state funerals. Five (5) working days in bereavement leave, with pay, will be granted to a Bargaining Unit member who provides adequate notice for out-of-state funerals.

13.4 Bargaining Unit members seeking to take more time off than that provided in this Article or time off for the death of someone outside the member's Immediate Family may utilize accrued PTO time subject to the approval of the Bargaining Unit member's Department Director.

13.5 The City reserves the right to request evidence that all conditions for bereavement leave are satisfied, including the place of domicile of the Bargaining Unit member and/or the deceased, a Bargaining Unit member's relationship to the deceased, and evidence that an Immediate Family member has in fact died.

13.6 Bereavement leave is generally limited to three (3) instances per fiscal year. Bargaining Unit members seeking to take bereavement leave more than three (3) times in a fiscal year must provide evidence that all conditions are satisfied before taking bereavement leave.

ARTICLE 14

EVALUATION PERIOD

14.1 All new regular full-time Bargaining Unit members are subject to a general evaluation period of six (6) months. The evaluation period gives the supervisor an opportunity to determine how well the Bargaining Unit member performs the assigned job and also provides the Bargaining Unit member an opportunity to decide whether or not the member likes the work environment.

14.2 The City shall have the ability to extend the evaluation period up to an additional three (3) months when the City deems it necessary. In total, the evaluation period shall not exceed nine (9) months.

14.3 During the evaluation period, Bargaining Unit members do not have a right to a Due Process/Pre-Determination Hearing or any appeal process.

14.4 A Bargaining Unit member may be placed on administrative or discretionary leave, with pay, by the Department Director until the matter is resolved. Bargaining Unit members who are being investigated for criminal activity by the City or charged with a crime will be placed on administrative or discretionary leave without pay for up to a period of thirty (30) days except when the City deems the nature of the alleged criminal activity to be serious and the investigation cannot reasonably be completed during such period under the circumstances.

ARTICLE 15

PROMOTIONS AND DEMOTIONS

Promotions

15.1 A promotion is the assignment of an employee to a vacant position within the Bargaining Unit, subject to the conditions in this Article, which has a higher classification and higher maximum salary than the employee's prior position. A promoted employee shall receive the minimum of the new pay grade or a 10 percent (10%) increase in base compensation, whichever is greater. The increase in compensation for promotions begins to apply at the start of the evaluation period.

15.2 All promoted employees will be subject to pre-assignment/promotional drug/alcohol testing prior to final placement in the new position. Employees who fail the pre-assignment/promotional drug/alcohol test will not be promoted and may be subject to discipline up to and including termination.

15.3 Following a promotion, Bargaining Unit members are required to complete a six (6) month evaluation period in the new classification. The City shall have the ability to extend the evaluation period up to an additional three (3) months when the City deems it necessary. In total, the evaluation period shall not exceed nine (9) months.

15.4 The City shall prepare at least one (1) Employee Performance Evaluation Form during the evaluation period. To the extent possible, however, the City will strive to prepare two (2) Employee Performance Evaluation Forms for promoted employees after three (3) and six (6) months following the promotion.

15.5 If during the evaluation period, the City determines that the employee should not be promoted, the employee will be returned to the employee's former position and anyone filling that position or performing the duties formerly performed by the employee in the evaluation

period shall have no entitlement to remain in the position or continue to perform these duties. After being returned to the employee's former position, the Bargaining Unit member's compensation would revert to the employee's base compensation before the employee entered the evaluation period.

15.6 The City shall make reasonable efforts to communicate all job vacancies in the Bargaining Unit that constitute promotions for Bargaining Unit members, to Bargaining Unit members. If the City determines that a qualified Bargaining Unit member seeking a promotion and a non-City applicant seeking the same position are equally qualified, the City will select the Bargaining Unit member.

Demotions

15.7 A demotion occurs when a Bargaining Unit member is assigned to a position in a lower classification and lower pay grade.

15.8 Bargaining Unit members who are demoted will experience a reduction in base compensation up to the maximum compensation for the salary range of the lower classification. Employees whose salaries are more than ten percent (10%) above the classification to which they are demoted will have their base pay reduced by ten percent (10%) at the time of demotion, and up to ten percent (10%) at the start of each fiscal year until the employee's compensation reaches the maximum compensation for the salary range of the lower classification.

ARTICLE 16

TRANSFERS

16.1 A transfer is defined as the assignment of an employee within or outside the employee's department, to a different and vacant position with the same pay grade. The City may transfer an employee after providing at least fourteen (14) calendar days notice of the transfer. Such notice shall contain the effective date of change, shift schedule, and location of the new assignment. However, the notice may be waived upon consent of the employee or if the transfer is declared an emergency by the Department Director. An emergency shall be an unanticipated occurrence as a result of which a prompt transfer is necessary to avoid a substantial loss of departmental effectiveness or efficiency. Such action shall require the approval of the City Manager or designee.

16.2 Following a transfer, Bargaining Unit members are required to serve a six (6)-month evaluation period in the new classification. The City shall have the ability to extend the evaluation period for up to an additional three (3) months when the City deems it necessary. In total, the evaluation period shall not exceed nine (9) months.

16.3 A Bargaining Unit member may request a return to the member's former position at any time during the evaluation period. When a Bargaining Unit member makes a proper request to return to the member's former position, the City shall facilitate such return within fourteen (14) calendar days, unless the return will cause a substantial loss of departmental effectiveness or efficiency. In such case, the City shall return the Bargaining Unit member to his/her former position as soon as reasonably possible.

16.4 The City may, at any time, return the transferred Bargaining Unit member to the member's former position. Before returning the Bargaining Unit member to the member's former position, the City shall provide at least fourteen (14) calendar days of notice. However,

the notice may be waived upon consent of the employee or if the return is declared an emergency by the Department Director. An emergency shall be an unanticipated occurrence as a result of which a prompt transfer is necessary to avoid a substantial loss of departmental effectiveness or efficiency. Such action shall require the approval of the City Manager or designee.

ARTICLE 17

HOURS OF WORK, BREAKS, TARDINESS, AND ABSENCES

Workweek

17.1 The standard workweek for Bargaining Unit members in the Public Works Department is forty (40) hours based on four (4) workdays, Monday through Thursday, consisting of ten (10) hours for each workday. The standard workweek for Bargaining Unit members in the Parks and Recreation Department, is forty (40) hours, based on five (5) workdays, Monday through Friday, consisting of eight (8) hours for each workday. The hours of the workday and days of a standard workweek may be subject to change within the discretion and approval of the Department Director and the City Manager. Employees may be required to work in excess of their normal workweek.

17.2 Bargaining Unit members who are in positions that require on-call status must maintain and submit a legitimate telephone number to their supervisor. Hours worked shall be reported on time keeping records exactly as they occur to ensure accurate compensation.

Breaks

17.3 Due to the varied nature of the work performed by City employees, meal periods will vary among departments. They are scheduled at the discretion of Department Directors or their designees. Bargaining Unit members, however, will receive a daily lunch break of at least thirty (30) minutes, without pay.

17.4 Full-time employees shall be permitted two (2) fifteen (15) minute breaks during the day, the time of which shall be at the discretion of the Department Director or designee. Work breaks must be arranged so as not to interfere with City business. Unused breaks may not be accumulated nor shall break time be utilized for early departures or late arrival during the course of the workday, unless otherwise authorized by the Department Director.

Tardiness And Absences

17.5 For payroll reporting purposes, tardiness for non-exempt Bargaining Unit members will be recorded as follows on the Bargaining Unit members' attendance record.

MINUTES LATE	TIME DOCKED
07-21 minutes	15 minutes
22-36 minutes	30 minutes
37-51 minutes	45 minutes
52-66 minutes	60 minutes

17.6 All tardiness, regardless of the number of minutes or availability of personal time off to cover tardiness, becomes part of the Bargaining Unit member's attendance record and will be noted in the Bargaining Unit member's performance evaluation and/or subject the Bargaining Unit member to counseling or disciplinary action up to and including termination.

17.7 If an employee is absent or late, the Bargaining Unit member must contact the employee's immediate supervisor as soon as reasonably possible. If a Bargaining Unit member is not able to reach the employee's immediate supervisor, the member should then begin to contact others in the employee's chain of command until supervisory personnel are made aware of the absence or tardiness. If the Bargaining Unit member cannot reach the member's immediate supervisor or someone within the chain of command, the Human Resources Department shall be contacted within two (2) hours of the employee's standard reporting time, or as soon as reasonably possible. Employees who are absent for three (3) consecutive days without reporting in will be considered to have resigned and will be terminated.

17.8 If a Bargaining Unit member is sent home for non-disciplinary reasons or reasons outside of the member's control before the completion of the member's assigned shift, the member shall be compensated for the shift as though the full shift was completed.

17.9 Hours considered worked for the purpose of calculating overtime for hours worked in excess of forty (40) for each week as follows:

1. All hours worked by the Employee performing the employee's job duties or work directed by the City.
2. Jury duty.
3. Call-back hours.
4. Time testifying in court on behalf of the City.
5. Mandatory off-duty training, meetings, courses, or lectures for which the City requires attendance.
6. On-duty labor negotiations for designated Union representatives.

17.10 Hours considered not worked for the purpose of calculating overtime for hours worked in excess of forty (40) hours for each week as follows:

1. All paid leave, including, but not limited to, bereavement leave, vacation leave, and sick time.
2. Family or Medical Leave without pay.
3. Compensatory time used.
4. Observed holidays.
5. Suspension from duty as a result of disciplinary action.
6. Any other hours not listed above in Section 17.9.

ARTICLE 18

OVERTIME AND CALL-OUT PAY

Overtime

18.1 Only actual hours worked will be counted when determining whether an employee is entitled to overtime compensation pursuant to the Fair Labor Standards Act (FLSA). Overtime hours in excess of the forty (40)-hour workweek shall be paid at the rate of 1.5 times the regular rate of pay subject to the provisions of Section 17.9 and 17.10 herein.

Call-Out Pay

18.2 In the event a Bargaining Unit member is called out to work at a time outside the member's regular working hours, the member shall be paid at a rate of 1.5 times the regular rate of pay for all hours worked, or six (6) hours of pay at their regular straight hourly rate, whichever is greater. Work that has been scheduled at least forty-eight (48) hours prior to the start of such work will not qualify for call-out pay, unless the Bargaining Unit member is asked by the City to work a non-contiguous shift on the same day.

18.3 A Bargaining Unit member who is required to remain at work following completion of the member's normal scheduled day or shift is not eligible for call-out pay.

ARTICLE 19

PERSONAL TIME OFF

19.1 The City offers Personal Time Off (PTO) in lieu of vacation and sick time. PTO can be taken for any reason, so long as the Bargaining Unit member provides advance notice of the time the member seeks off, and the requested time off is approved by the supervisor or Department Head. Advance notice is provided when the Bargaining Unit member advises the City of the time the member seeks off at least five (5) days before such date. Bargaining Unit members are not required to provide advance notice and receive prior approval before taking PTO time in emergency situations when it is not reasonably practical to do so. The Bargaining Unit member must provide notice of an emergency situation as soon as reasonably practical. Approval of properly requested PTO time should not be unreasonably withheld.

19.2 All regular full-time Bargaining Unit members shall earn PTO. Temporary full-time employees are not eligible for PTO.

19.3 PTO time used by a Bargaining Unit member shall not be considered for purposes of determining overtime compensation pursuant to the Fair Labor Standards Act (FLSA).

19.4 Each bi-weekly pay period, an eligible bargaining unit member will accrue a pro-rata portion (based on work shift) of PTO. The personal Annual Accrual Rates for full-time regular employees will be determined as of the years of service for existing bargaining unit members as of September 30, 2019, and remain the same rate through the duration or term of employment, as follows:

Years of Service	Day/Hours Off	Accrual Rate
Less than 5 years of service	22 days/ 176 hours	6.77
5-10 years of service	27 days/ 216 hours	8.31
More than 10 years of service	32 days/ 256 hours	9.85

19.5 Bargaining unit members hired on or after October 1, 2019 shall have the accrual rate of 6.77 hours in compliance with the Employee Policies and Procedures manual.

19.6 PTO shall be reported in increments of no less than a quarter of an hour increments. Any unused PTO will automatically be carried over to the following year.

19.7 Bargaining Unit members who are absent from work and are not otherwise required to receive PTO pursuant to applicable law, will not earn PTO benefits during any such leave.

19.8 Bargaining Unit members will be paid for all personal time off upon separation of employment up to a maximum accrual of **1040** hours for full-time employees, unless the employee's PTO maximum accrual was adjusted as a result of a prior PTO payment request payout. Once a Bargaining Unit member has reached the maximum accrual amount, excess leave must be used by the end of the fiscal year or the Bargaining Unit member will be entitled to cash out 50% of the overage each year, but will lose the remaining 50% of such time. This annual cash-out will be a one-time cash-out payment, paid no later than October 31st of each fiscal year. The payment will be based on the overage leave balance through September 30th. A bargaining unit member who has received a cash out of PTO time prior to October 1, 2019 shall have the maximum accrual amount of PTO that has been reduced by the prior cash out.

19.9 Except as provided in 19.8, above, Bargaining Unit members will not receive cash payment for accrued PTO except at termination of employment or if deployed for military services for a consecutive period of a year or greater. Bargaining Unit members may receive cash payment for

accrued PTO in an emergency situation as determined by the City Manager on a case-by-case basis, unless this exception is eliminated in the City's Employee Policies and Procedures Manual, as may be amended from time to time. In instances when a Bargaining Unit member is allowed to cash out accrued PTO, the maximum accrual available to such person shall be reduced by the amount of time cashed out.

ARTICLE 20

INSURANCE

HEALTH INSURANCE

City Plan

20.1 The City shall offer group health insurance to all regular full-time Bargaining Unit members. For Bargaining Unit members who do not receive a Healthcare Waiver as set forth below, the City shall pay the Bargaining Unit member's full individual premium for HMO coverage. Bargaining Unit members desiring coverage for their spouse and/or dependent children may purchase such coverage through biweekly payroll deductions. The City shall pay 50% of the premium for the Bargaining Unit member's spouse and/or dependent children for HMO coverage. Any excess amount owed by a Bargaining Unit member will be paid by the Bargaining Unit member through bi-weekly payroll deductions.

20.2 One bargaining unit member selected by the Union shall be part of the City's health insurance committee.

20.3 The parties recognize that the City needs flexibility to negotiate over health insurance plans, benefits, and premiums. Therefore, the City shall have the unilaterally ability to make changes to the health insurance plan, including, but not limited to, changes to the carrier, benefits, premiums, deductibles, etc., provided such changes are made on a City-wide basis.

Healthcare Waiver

20.4 If a newly hired full-time regular Bargaining Unit member has health care coverage through another health plan, they may waive the health care coverage provided by the City as set forth in this Article. Existing Bargaining Unit members who discontinue City sponsored coverage during open enrollment and subsequently acquire other health care coverage may enroll for the waiver option within 30 days of acquiring other health care coverage.

20.5 Eligible employees shall submit a Healthcare Waiver Application to the City's Human Resources Department in order to be considered for the Healthcare Waiver. If proof of other health care coverage is provided, eligible Bargaining Unit members will receive a bi-weekly medical stipend of \$92.31, to be included as part of their wages.

20.6 For qualifying newly hired Bargaining Unit members, payment of the stipend becomes effective the first day of the month following thirty (30) days of employment, provided the Bargaining Unit member is actively at work. For qualifying existing Bargaining Unit members, payment of the stipend is effective the first day of the month following the date the Health Care Waiver Application is received in the Human Resources Department.

20.7 This stipend will only be approved if the employee is covered by another health plan. Bargaining Unit members are not entitled to the stipend for the coverage of a spouse and/or dependent on another plan.

- All stipend payments are considered taxable income.
- If other coverage is discontinued, the employee will only be eligible to enroll for medical coverage during Open Enrollment unless the employee experiences a qualifying event, as defined by Internal Revenue Code 125 and or/the Health Insurance Portability and Accountability Act of 1996 (HIPPA). Proof of the qualifying event must be received within 30 days of the event. A Bargaining Unit member wishing to cover dependents on their insurance because of a qualifying event must provide documentation

such as a birth certificate, marriage certificate, or adoption agreement as proof of eligibility.

- A statement from another insurance carrier or a copy of a health insurance card shall constitute proof of other health care coverage.
- Stipends will be immediately discontinued at the time of termination and will not be payable on a prorated basis.

20.8 Bargaining Unit members may revoke the Healthcare Waiver but will not be entitled to receive the portion of the health care benefit that is foregone during the waiver period. The City is not responsible for any medical expenses incurred while the waiver is in effect.

LIFE INSURANCE

20.9 All full-time regular Bargaining Unit members shall be provided with Basic Term Life and Accidental Death and Dismemberment Insurance, paid for by the City, equivalent to one (1) times their annual base salary (subject to guarantee maximum by insurance carrier). Coverage for newly hired Bargaining Unit members becomes effective the first day of the month, following thirty (30) days of employment.

ARTICLE 21

WAGES

Cost-Of-Living Increases

21.1 All bargaining unit members shall receive a 4% cost-of-living increase on October 1, 2022; 4% cost-of-living increase on October 1, 2023 and 4% cost-of-living increase on October 1, 2024.

Merit Based Benefits

21.2 Bargaining unit members shall receive the following benefits/compensation based on the performance rating received on his/her yearly evaluation in accordance with the following scale:

Rating	PTO Days	Bonus
Unsatisfactory	None	None
Needs Improvement	None	None
Proficient	One (1) Day	None
Commendable	Two (2) Days	1% of Base Pay
Outstanding	Three (3) Days	2% of Base Pay

21.3 Bargaining unit members who receive a performance evaluation of Needs Improvement will be placed on a ninety (90) day improvement period, after which the employee will be reevaluated. If the City determines that the bargaining unit member has made the appropriate improvement during this period, the member will receive one (1) PTO day.

21.4 All merit based PTO days earned must be used within one (1) year of the date earned or they will be lost.

21.5 There will be a 2% salary adjustment to the positions of Athletic Supervisor, Irrigation Supervisor, Janitorial Supervisor, Landscape Supervisor and Public Service Supervisor to become effective covering the pay period of the first paycheck in September 2022.

ARTICLE 22

EDUCATION INCENTIVE

22.1 Full-time employees who obtain a Master's Degree or Doctoral Degree after employment with the City will receive a one-time payment of one thousand dollars (\$1,000). This incentive shall be paid through the payroll cycle and is subject to any applicable payroll taxes. Certified transcripts must be submitted to the Human Resources Department for review and approval prior to payment.

ARTICLE 23

LAYOFF AND RECALL

23.1 In the event the City deems it necessary to reduce the work force due to the lack of work or funds as determined by the City, the City will consider various factors, such as job performance, special job skills, budget considerations, seniority, etc., prior to deciding which employee(s) would be laid off. In making this determination, no single factor will be determinative. However, if after applying the various factors, the City determines that two or more employees are substantially similar, seniority shall be the deciding factor with the least senior employee(s) being laid off first.

23.2 The City agrees to provide the Union notice of any employee being laid off on the same day such employee receives the notice of layoff, or as soon as reasonably practicable.

23.3 All laid off employees shall have the first rights of recall into the position from which the employee was laid off (or a different equivalent position if offered by the City) according to seniority, up to twelve (12) months after the layoff occurs. In the event an employee is recalled to work after layoff and refuses to accept the position, the City's recall obligations with respect to that employee shall cease.

23.4 During the period of layoff, the employee will not accumulate seniority or benefits. If recalled and re-employed after a layoff, an employee shall resume the accumulation of seniority from the first day of reemployment with the City, only if the layoff does not exceed twelve (12) months, as provided in Article 10 herein. For purposes of seniority only, however, a layoff shall not be considered a break in service.

ARTICLE 24

DISCIPLINARY ACTION PROCESS

Counseling

24.1 Supervisors may use oral and formal written counselings as mechanisms to correct a minor problem with an employee's performance and/or guide the employee toward proper performance. A formal written counseling shall be referred to as a Record of Counseling (ROC). ROCs will be documented in the bargaining unit member's personnel file but shall not be deemed disciplinary action subject to appeal.

24.2 Bargaining unit members may file a written rebuttal to a ROC with Human Resources within seven (7) days after the documented counseling is received. ROCs older than two (2) years may not be considered when determining prospective disciplinary action unless the employee has exhibited a pattern or a reoccurrence of a same or similar infraction.

Disciplinary Action Procedures

24.3 The City will seek to progressively discipline bargaining unit members but reserves its rights to assert any form of discipline permitted by this Article. Bargaining unit members subject to discipline will be provided a Disciplinary Action Report (DAR) by management. The purpose of the DAR is to advise the bargaining unit member of the conduct management deems unsatisfactory and should contain information such as what the conduct is, where it occurred, when it occurred, and who was involved.

24.4 The various levels of discipline are as follows: (1) Written Reprimand; (2) Suspension; (3) Demotion; and (4) Dismissal. Non-probationary bargaining unit members are entitled to internally appeal any suspension, demotion, or dismissal. Written reprimands may not be appealed. However, written reprimands older than two (2) years shall not be considered in

determining further disciplinary action unless the employee has exhibited a pattern or a reoccurrence of a same or similar infraction or has violated any other policies and/or procedures.

Corrective Action

24.5 The Corrective Action Guide (CAG) set forth below is divided into three groups, each of which is intended to reflect a different degree of misconduct. The CAG is intended to be instructive, not dispositive. Nothing herein shall be construed to restrict the City from taking more severe or lenient corrective action in any given instance when warranted by the circumstances. The City retains the right to treat each violation on an individual basis without setting a binding precedent for future cases.

24.6 In determining whether a deviation from the CAG is warranted, consideration will be given to, among other things, the severity of the offense, prior misconduct, the time interval between violations, the length and quality of service, and the employee's willingness to correct the misconduct. Reasons for deviating from the recommended corrective actions shall be noted in the DAR.

24.7 Because the City cannot anticipate every form of misconduct, the list of offenses is not exhaustive.

24.8 Any offense not specifically enumerated in the three groups shall be considered an offense within the group which is closest in resemblance. The CAG corresponding to such group shall apply to the unlisted offense. As used in this section, the terms "second" or "third" offense do not necessarily mean a repeat of a similar previous offense, but includes any and all previous offenses.

Corrective Action Guide

GROUP I OFFENSES	RECOMMENDED ACTION
First Offense	Written Reprimand
Second Offense	Up to Three (3) Days Suspension
Third Offense	Termination

- See “Appendix A” For Examples Of Group I Offenses

GROUP II OFFENSES	RECOMMENDED ACTION
First Offense	Up to Five (5) Days Suspension
Second Offense	Termination

- See “Appendix B” For Examples Of Group II Offenses

GROUP III OFFENSES	RECOMMENDED ACTION
First Offense	Termination

- See “Appendix C” For Examples Of Group III Offenses

Pre-Determination Hearings

24.9 All non-probationary bargaining unit members have the right to a Pre-Determination Hearing before the member’s direct supervisor, the Department Director, and the Human Resources Director, or designee, prior to a suspension, demotion, or dismissal. Management may elect to have other individuals present during the meeting but may not have individuals present who may issue a decision on a bargaining unit member’s appeal.

24.10 The bargaining unit member will receive at least five (5) days notice prior to the hearing. The hearing shall be conducted in an informal manner and the employee may have any one representative of the employee’s choice present during the hearing. The bargaining unit member’s chosen representative is entitled to present the employee’s position and/or any exculpatory information.

24.11 The bargaining unit member and representative shall conduct themselves professionally during the pre-determination hearing and remain respectful at all times. All reasonable instructions by Management during the pre-determination hearing must be followed by the bargaining unit member and the member's representative. Failing to comply with this Article may result in Management's termination of the hearing.

Determination

24.12 Following the hearing, the bargaining unit member will receive a written determination concerning the proposed discipline. If discipline is issued, the written determination will include what the discipline is and the reasons why the discipline was issued.

First Appeal

24.13 A bargaining unit member or the member's chosen representative may file a written appeal of the determination with the Human Resources Director within ten (10) days after the written determination was issued. The written appeal should explain why it is believed that the determination was erroneous.

24.14 The written appeal will be reviewed by an Assistant City Manager who does not have supervisory/line authority over the department in question. The Assistant City Manager will then issue a written decision upholding or denying the bargaining unit member's appeal. The Assistant City Manager may not directly contact the person who recommended the discipline unless the bargaining unit member or representative is given an opportunity to rebut the information provided by such person.

Final Appeal

24.15 If the bargaining unit member is dissatisfied with the determination, the member may request a final appeal with the City Manager by filing written notice of such request with the Human Resources Director within ten (10) days after receiving the Assistant City Manager's

decision. The request for a final appeal should indicate whether a personal meeting with the City Manager is desired. If a request for a personal meeting is made, the City Manager will meet with bargaining unit member and the member's representative, if one is requested. The City Manager may have other individuals present during the meeting.

24.16 When meeting with the City Manager, the bargaining unit member and the member's representative shall conduct themselves professionally. All reasonable instructions by the City Manager must be followed by the bargaining unit member and the representative. Failing to comply with this Article may result in termination of the meeting.

24.17 The City Manager will issue a written Final Determination upholding or denying the bargaining unit member's appeal.

Finality of City Manager's Decision and Exclusivity of Remedy

24.18 Decisions by the City Manager are final and not subject to appeal, unless discipline involves termination or suspensions greater than five (5) work days. Discipline, with the exception of terminations and suspensions greater than five (5) work days, are not subject to grievance or arbitration. This Article shall be the exclusive process concerning discipline and discharge and replaces the Disciplinary Action Procedures and Employee Dispute Resolution sections of the City's Employee Policies and Procedures Manual.

ARTICLE 25

SEVERABILITY CLAUSE

25.1 Should any provision of this Agreement, or any part thereof, be rendered or declared invalid by reason of any existing or subsequently enacted state or federal law, or by any decree of a court of competent jurisdiction, all other articles and sections of this Agreement shall remain in full force and effect for the duration of this Agreement. The parties agree to immediately meet and confer concerning any invalidated provision(s).

APPENDIX A

Examples of Group I Offenses include:

1. Tardiness.
2. Taking more than specified time for meals or rest periods.
3. Performing or failing to perform work in accordance with City's standards for performance.
4. Creating or contributing to poor housekeeping or sanitary conditions.
5. Failing to promptly report an occupational injury to supervisor.
6. Engaging in horseplay, scuffling, wrestling, distracting the attention of others, or similar types of disorderly conduct.
7. Failing to maintain a courteous and cooperative work attitude towards City employees or the public.
8. Soliciting funds or distributing literature during working hours or on City property without the City's consent.
9. Smoking on City property or in a City owned/leased vehicle.
10. Operating or possessing City equipment not assigned.
11. Wasting time or loitering.
12. Violating a safety rule or safety practice when no injury resulted as a result of such misfeasance or malfeasance.
13. Creating or contributing to an unsafe working condition.
14. Failing to comply with a City policy or procedure.
15. Various other actions not specified.

APPENDIX B

Examples of Group II Offenses include:

1. Engaging in behavior that interferes with the ability of other employees to carry out their duties.
2. Sleeping during working hours.
3. Failing to report to work when scheduled or directed by management without following City policies for reporting absences and when the employee has reasonable notice that he/she must report to work.
4. Gambling or engaging in any other game of chance at the City or during City time.
5. Leaving the job during regular working hours without permission.
6. Directing abusive language toward anyone at the City or a member of the public.
7. Inappropriate use of City vehicles.
8. Use of City property or time for personal financial gain.
9. Failing to report a request for information or receipt of a subpoena that relates to City business.
10. Multiple violations of City policies or procedures.
11. Any conduct which has a direct effect on the safety of others.
12. Various other actions not specified.

APPENDIX C

Examples of Group III Offenses include:

1. Maliciously or intentionally destroying, damaging or misappropriating City or other property.
2. Falsifying or destroying records such as employment applications, accident records, work records, computer or technology records, cellular phone, purchase orders, time sheets, etc.
3. Making or assisting in a claim for underserved compensation of benefits.
4. Using or threatening to use physical force on City property or while on City time.
5. Failing to report to work for three consecutive working days without notifying the City when the employee is capable of doing so.
6. Providing false or misleading information when applying for employment or during employment.
7. Willful neglect in the performance of duties.
8. Using or attempting to use political influence or bribery to secure an advantage in any manner.
9. Commission of a felony or other serious criminal offense while employed by the City of Miami Gardens.
10. Violating the City's Drug Free Workplace Policy.
11. Violating the City's Unlawful Harassment and Discrimination Policy.
12. Having or possessing firearms, explosives, or weapons in City facilities. (Except Public Safety Officers or those that are required to carry firearms in their line of duty). City facilities shall include facilities leased by the City for City use.
13. Insubordination and/or refusal to perform the supervisor's assignments.
14. Threatening, intimidating or coercing anyone at the City or a member of the public.
15. Exhibiting a pattern of violating City policies and procedures.
16. Theft of City property or funds.
17. Various other actions not specified.

TEAMSTERS LOCAL 769	CITY OF MIAMI GARDENS
Name: _____	By: _____ Rodney Harris Mayor
Signature: _____	
Date: _____	Date: _____
Name: _____	By: _____ Cameron D. Benson City Manager
Signature: _____	
Date: _____	Date: _____
Name: _____	By: _____ Sonja Dickens City Attorney
Signature: _____	
Date: _____	Date: _____
Name: _____	By: _____ Mario Bataille City Clerk
Signature: _____	
Date: _____	Date: _____